



CHAPTER xxxiv

An Act to make further provision with respect to the dues rates rents and charges demandable by the Dover Harbour Board and for other purposes.

[30th July 1949.]

WHEREAS the Dover Harbour Board were constituted and incorporated by the Harbours and Passing Tolls &c. Act 24 & 25 Vict. 1861 and by virtue of that Act and of a royal charter c. 47. dated the sixth day of October one thousand six hundred and six and of the Dover Harbour Act 1828 and numerous subsequent 9 Geo. 4. Acts the Board and their predecessors were authorised to main- c. xxxi. tain and improve Dover Harbour as existing from time to time:

And whereas it is expedient to make further provision with respect to the dues rates rents and charges which may be demanded taken and recovered by the Board:

And whereas it is expedient that further powers should be conferred on the Board with respect to the regulation of the use of Dover Harbour and of the seashore and promenade and other works belonging to the Board and comprised therein:

And whereas it is expedient that the other powers in this Act contained should be conferred on the Board and that the Acts relating to the Board should be amended in certain respects as by this Act provided:

And whereas it is expedient that the other provisions of this Act be enacted:

And whereas the objects of this Act cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and

with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

Short and
collective
titles.

1.—(1) This Act may be cited as the Dover Harbour Act 1949.

(2) The Acts mentioned in the first column of this subsection may be cited as stated in the second column thereof—

Chapter no.

Short title.

6 & 7 Will. 4. c. cxxv.

Dover Harbour Act 1836.

11 & 12 Vict. c. xcvii.

Dover Harbour Act 1848.

(3) The Acts hereafter mentioned in this subsection may be cited as the Dover Harbour Acts 1828 to 1933 (namely):—

The Dover Harbour Act 1828.

The Dover Harbour Act 1836.

The Dover Harbour Act 1848.

The Dover Harbour Act 1871.

The Dover Harbour Act 1873.

The Dover Harbour Act 1882.

The Dover Harbour Act 1891.

The Dover Harbour Act 1898.

The Dover Harbour Act 1901.

The Dover Harbour Act 1902.

The Dover Harbour Board Act 1906.

The Dover Harbour (Works &c.) Act 1906.

The Dover Harbour Act 1913.

The Dover Harbour Act 1919.

The Dover Harbour Act 1920.

The Dover Harbour Act 1923.

The Dover Harbour Act 1926.

The Dover Harbour Act 1928.

The Dover Harbour Act 1933.

(4) The Dover Harbour Acts 1828 to 1933 and this Act may be cited together as the Dover Harbour Acts 1828 to 1949.

Incorporation
of Harbours
Clauses Act.

2. The Harbours Clauses Act 1847 except where varied by or inconsistent with the provisions of the existing Acts and this Act is incorporated with and forms part of this Act and in construing the said incorporated Act the expression “the harbour dock or pier” shall mean the harbour as defined in this Act and the expression “the special Act” shall mean this Act:

34 & 35 Vict.
c. clxvi.

36 & 37 Vict.
c. ccxxxv.

45 & 46 Vict.
c. cclvi.

54 & 55 Vict.
c. cxxv.

61 & 62 Vict.
c. cxxxvi.

1 Edw. 7. c. ccvi.

2 Edw. 7.
c. ccxxxvi.

6 Edw. 7. c. ii.

6 Edw. 7. c. ccv.

3 & 4 Geo. 5.
c. xci.

9 & 10 Geo. 5. c. x.

10 & 11 Geo. 5.
c. lxxxv.

13 & 14 Geo. 5.
c. lxxxvii.

16 & 17 Geo. 5.
c. lxxxvii.

18 & 19 Geo. 5.
c. xci.

23 & 24 Geo. 5.
c. lxxxii.

Provided that—

- (i) The provisions of sections 16 to 19 of the said Act shall not be in force unless and until the Board shall be required by the Minister to provide and maintain a lifeboat a tide gauge and a barometer ;
- (ii) In the application of the said Act to this Act and the existing Acts the word “vessel” shall include a seaplane on the surface of the water and craft of unusual construction ;
- (iii) Nothing in the said Act shall require or authorise the harbour master or any other officer to require the dismantling of a seaplane or any part thereof or the making of any alteration whatever of the structure or equipment of a seaplane.

3.—(1) In this Act unless there be something in the subject or Interpretation. context repugnant to such construction—

“appointed day” means the first day of September one thousand nine hundred and forty-nine or such later date as the Minister on the application of the Board may appoint ;

“the Board” means the Dover Harbour Board ;

“enactment” means any Act of Parliament whether public general local or private any order or scheme made under an Act of Parliament or any provision in an Act of Parliament or in any such order or scheme ;

“the existing Acts” means the Dover Harbour Acts 1828 to 1933 ;

“the harbour” means Dover Harbour as existing at the passing of this Act the limits whereof are shown within the red line delineated on the signed plan ;

“the Harbours Clauses Act 1847” means the Harbours Docks and Piers Clauses Act 1847 ;

10 & 11 Vict.
c. 27.

“master” when used in relation to any vessel means the person having the command or charge of the vessel for the time being ;

“the Minister” means the Minister of Transport ;

“the signed plan” means Admiralty Chart No. 1698 (edition of 24th December 1943) signed in triplicate by the Right Honourable the Earl of Drogheda the chairman of the committee of the House of Lords to whom the Bill for this Act was referred one copy of which chart has been deposited in each of the following offices :—

- (i) the Parliament Office in the House of Lords ;
- (ii) the Committee and Private Bill Office of the House of Commons ; and
- (iii) the principal office of the Board ;

10 & 11 Geo. 6.
c. 49.

“the transport commission” means the British Transport Commission and any reference to the transport commission in relation to any functions of that commission which are for the time being delegated to an executive in pursuance of section 5 of the Transport Act 1947 shall be construed as a reference to that executive;

“the undertaking” means the undertaking of the Board as authorised from time to time.

(2) (a) In the existing Acts and this Act unless there be something in the context repugnant to such construction—

“seaplane” includes a flying boat and any other aircraft designed to float or manoeuvre on water;

“vessel” includes any vessel ship lighter keel barge boat raft pontoon and craft of any kind however navigated propelled or moved and any seaplane on the surface of the water.

(b) In the existing Acts “vessel” shall cease to have the meaning assigned to it by section 3 of the Harbours Clauses Act 1847.

Harbour and
light dues.

4. On and after the appointed day the Board may demand and take in respect of every vessel other than a seaplane entering using or leaving the harbour any sum not exceeding the dues and rents stated in the First Schedule to this Act subject to the exemptions regulations and conditions specified in that schedule.

Dock dues
and rents.

5. On and after the appointed day the Board may demand and take in respect of every vessel for entering the Granville Dock or the Wellington Dock or for lying therein in addition to any other dues rates rents and charges authorised by this Act any sum not exceeding the dues and rents stated in the Second Schedule to this Act subject to the regulations and conditions specified in that schedule.

Rates and
rents on
goods.

6.—(1) On and after the appointed day the Board may demand and take in respect of all goods discharged shipped or received within the harbour rates not exceeding those specified in the Third Schedule to this Act subject to the exemptions regulations and conditions specified in that schedule.

(2) If any goods remain on or in any wharf berth quay pier shed or other work of the Board for more than twenty-four hours after the time when the goods are placed thereon or therein the Board may demand and take in respect of such goods quay or shed rent not exceeding the amounts specified in the Fourth Schedule to this Act subject to the exemptions regulations and conditions specified in that schedule.

7. On and after the appointed day the Board may demand Charges for and take for the use by vessels of any slipway belonging to the slipways. Board any sums not exceeding the several hauling and launching charges and rents stated in the Fifth Schedule to this Act subject to the regulations and conditions specified in that schedule.

8.—(1) Subject to the provisions of the Air Navigation Act Rates on 1920 the Board may demand levy collect and receive on and seaplanes. in respect of seaplanes entering or using or leaving the harbour 10 & 11 Geo. 5. such reasonable rates as may from time to time be approved c. 80. by the Minister.

(2) The rates authorised by this section in respect of seaplanes shall be paid by or be recoverable from either the owner or the pilot or other person in charge of such seaplane as the Board may determine.

9.—(1) The Board may (so far as the dues rates rents and Rates for charges specified in the Second Third Fourth and Fifth Schedules services and to this Act do not extend) demand and take such reasonable accommoda- rates as they may from time to time determine for the use of tion not any sheds buildings yards weighing machines moorings cranes otherwise provided for. buoys works and conveniences belonging to or provided by the Board or in respect of any services rendered by them in connection with the harbour.

(2) All such rates shall be respectively recoverable from the owner of the goods or other articles dealt with or from the owner of any vessel using or applying for the use of such plant appliances conveniences or services or from any person who may so apply.

10. The Board may from time to time build purchase contract Board may for or hire and may maintain and use and let tugs hoppers provide tugs barges or other power for the use and accommodation of vessels &c. frequenting the harbour.

11.—(1) The Board may demand and take such reasonable Charges for rates and charges as they may from time to time determine for use of tugs or in respect of the use of tugs hoppers barges or other power &c. maintained used or let by the Board and such rates or charges shall be paid by the owner agent master consignee or other person having charge of the vessel obtaining or requesting the assistance of such tug hopper barge or other power to the Board or to the person with whom the Board contract as the case may be and such rates and charges shall be due and payable whether such tug hopper barge or other power shall be actually employed or not provided the assistance thereof shall have been requested and shall in consequence of a request have been tendered by the Board or by the master or other person having command of such tug hopper barge or other power.

(2) The raising of steam or any other act of preparation done in consequence of and with a view to complying with a request for assistance shall be deemed to constitute the tendering of assistance notwithstanding that such request is cancelled or withdrawn before the tug hopper barge or other power leaves the berth or place at which it was lying at the time when the request for assistance was received.

Power to hire
cranes.

12. The Board may let upon hire on such terms as they think fit the cranes hoists and other appliances belonging to or leased by them.

Revision of
rates.

13.—(1) If it is represented by application in writing to the Minister—

(a) by the transport commission or any chamber of commerce or shipping or any representative body of traders or any person who in the opinion of the Minister is a proper person for the purpose; or

(b) by the Board;

that under the circumstances then existing the authorised rates or any of them should be revised the Minister if he thinks fit may make an order revising the authorised rates referred to in the application or any of them and may fix the date as from which such order shall take effect and thenceforth such order shall remain in force until the same expires or is revoked or modified by a further order of the Minister made in pursuance of this section.

(2) An application made to the Minister under this section shall be accompanied by such information and particulars as the Minister may consider relevant certified in such manner as he may require.

(3) Where upon an application for revision of authorised rates or an authorised rate an order has been made or the Minister has decided not to make an order no further application for a revision of the authorised rates or rate to which the application related shall be made within twelve months from the date of such order or decision as the case may be.

(4) Before making an order under subsection (1) of this section the Minister shall cause an inquiry to be held in reference thereto and the provisions of the section of this Act of which the marginal note is "Inquiries by Minister" shall apply to such inquiry as if it were an inquiry held in pursuance of that section:

Provided that in cases where no objection has been made to the application or where any objection which has been made has either been withdrawn or appears to the Minister to be of a trivial nature the Minister may if he thinks fit dispense with such inquiry.

(5) No order shall be made under subsection (1) of this section for reduction of the sums which the Board are authorised to demand and take by section 44 of the Dover Harbour Act 1891 as amended by section 47 of the Dover Harbour Act 1901 (as amended by section 25 of the Dover Harbour Act 1902) and section 39 of the Dover Harbour Act 1920 nor shall the Minister refuse to make an order authorising all or part of any increase in the said sums which may be the subject of an application under the said subsection if in the opinion of the Minister the net available income of the Board from all sources would in consequence of such reduction or without such increase (as the case may be) be insufficient to enable the Board to pay by regular half-yearly payments the interest and sinking fund payments on any debentures or debenture stock guaranteed by the transport commission.

(6) So long as the transport commission are liable in respect of any guarantee of the interest and sinking fund payments on any debentures or debenture stock issued by the Board no application shall be made under subsection (1) of this section for any increase in the sums which the Board are authorised to demand and take by the enactments referred to in the last preceding subsection except by the transport commission or the Board with the consent of the transport commission.

(7) In this section the expression "authorised rates" means the dues rates rents charges and taxes which the Board for the time being are authorised to demand and take.

(8) The power of the Minister to make an order under subsection (1) of this section shall be exercisable by statutory instrument.

14.—(1) Notwithstanding anything in the Dover Harbour Acts 1828 to 1949 or any enactment incorporated therewith or applying to the harbour the Board and the transport commission may from time to time enter into and carry into effect special agreements with reference to the dues rates rents and charges which the Board may demand take and recover in respect of vessels belonging to or operated by the transport commission and engaged in any cross-channel service to and from Dover and in respect of goods loaded into or discharged from such vessels and the Board may recover the amounts stipulated to be paid in any such special agreement in the same manner in all respects as the dues rates rents and charges authorised by this Act are recoverable. Special agreements with transport commission.

(2) Any such special agreement may contain provisions with respect to the compounding for or commutation of dues rates rents and charges by payment of fixed or other sums of money or otherwise.

Board's
liability
for goods.

15.—(1) The Board shall have no responsibility for or in regard to the safety of any goods deposited in their sheds yards buildings quays or other premises except goods warehoused by the Board in any shed yard or building specifically set apart by the Board for the purpose of so warehousing.

(2) The provisions of this section shall not relieve the Board from liability for damage to or loss of any goods so deposited if such damage or loss is caused by the act or neglect of the Board or their servants and is damage or loss for which apart from this section the Board would be liable.

Power to
exclude
dangerous
articles.

16.—(1) The Board shall not be compellable to receive within the harbour or upon or in any wharf berth quay pier shed or other work of the Board any articles which in their opinion would endanger the safety of the harbour or of vessels or goods.

(2) The Board shall from time to time publish in such manner as the Minister may direct a schedule of such articles as they refuse so to receive and every person who after such publication brings or causes or permits to be brought within the harbour or on or in any wharf berth quay pier shed or other work of the Board any such article shall for every such offence be liable to a penalty not exceeding one hundred pounds and the Board may remove the article and may recover the costs of such removal and of placing or storing the same elsewhere from the owner or offender.

(3) This section shall not apply to any articles in respect of the carriage conveyance loading discharging or handling of which within the harbour special provision (either for the safety of the harbour or of vessels or goods therein or by way of exemption from the operation of safety provision which save for the exemption would apply) is made by or under any enactment for the time being in force.

Limits of
harbour
master's
jurisdiction.

17. The jurisdiction of the harbour master for the purposes of the Dover Harbour Acts 1828 to 1949 and the Harbours Clauses Act 1847 shall be the harbour and the sea within a distance of four hundred yards from the seaward limits of the harbour.

Directions of
harbour
master.

18. Section 52 of the Harbours Clauses Act 1847 in its application to the Board and the harbour master shall extend to empower the harbour master to give directions prohibiting the mooring of vessels in any particular part or parts of the harbour.

Orders of
harbour
master need
not be in
writing.

19. Section 53 of the Harbours Clauses Act 1847 in its application to the Board and the harbour master shall not be construed to require the harbour master to serve a notice in writing of his directions upon the master of a vessel but such directions may be given verbally or otherwise communicated to such master but a notice that is not in writing shall not be deemed to be

sufficient unless in the opinion of the court before whom any case may be heard it was not reasonably practicable to serve a written notice on the master of the vessel.

20. The harbour master may prevent the removal or sailing from within the limits of the harbour of any vessel in respect of which or of the goods imported or exported wherein any rates are payable until evidence has been produced to him of the payment of those rates to the collector. Harbour master may prevent sailing of vessels.

21. On any occasion when the Board allow the use by the public of— Use of works &c. by public.

(a) the Prince of Wales Pier for the purposes of promenading pleasure and fishing ; or

(b) the eastern arm or the detached mole (commonly known as the southern breakwater) for the purposes of fishing ;

the Board may (but subject nevertheless to such byelaws as to the user thereof as may from time to time be in force) demand and take such reasonable sums as they from time to time think fit and direct for the admission to the works mentioned in paragraphs (a) and (b) of this section of persons vehicles and things for the afore-mentioned purposes and may exclude therefrom all persons vehicles and things by whom or in respect of which the sums directed to be demanded and taken shall not have been paid.

22.—(1) In this section the expression “ the controlled land ” means the land situate between the seaward end of the North Pier and the boundary groyne and comprising the seashore promenade and works connected therewith belonging to the Board which land is shown coloured green on the signed plan and includes so much of the railway defined as “ the railway No. 2 ” in section 3 (Interpretation) of the Dover Harbour Act 1923 as is coloured green on the signed plan (hereafter referred to in this section as “ the railway ”). Control of seashore and promenade.

(2) The Board may from time to time make such byelaws as they think fit for all or any of the following purposes (namely):—

(a) for regulating the use of the controlled land for riding and driving ;

(b) for prohibiting regulating or controlling the keeping or landing of boats on such parts of the controlled land as shall be specified in such byelaws ;

(c) for requiring boats of any specified class or description to be kept on such parts of the controlled land as may be specified in such byelaws ;

(d) for regulating the selling or hawking of any article commodity or thing on the controlled land ;

- (e) for regulating on such terms and subject to such conditions as may be specified in such byelaws the erection or placing on the controlled land or such part or parts thereof as may be so specified of any booths tents sheds stands or stalls (whether fixed or movable) or vehicles for the sale or exposure of any article or thing or any photographic appliances shows exhibitions performances swings roundabouts or other erections vans or other vehicles whether drawn or propelled by animals persons or mechanical power:

Provided that the foregoing provisions of this section and of any byelaws made thereunder shall not apply to the selling or hawking of newspapers or periodicals by such vendors of newspapers or periodicals as shall carry on their businesses without the use of any barrow or other vehicle.

(3) Nothing in paragraph (e) of subsection (2) of this section shall be deemed to confer on the Board power to make any byelaw under the subsection authorising the erection or placing of any of the things referred to in that paragraph other than stands and stalls on any part of the controlled land except the seashore.

(4) Nothing in this section shall authorise the Board to create or authorise the creation of any obstruction of any highway.

(5) The Board may on any part of the controlled land (except the railway and the promenade) provide facilities for bathing and may demand take and recover rents or charges for the use thereof or admission thereto.

(6) No person shall without the consent of the Board remove sand or gravel from any part of the controlled land and any person who shall contravene the provisions of this subsection shall be guilty of an offence and shall be liable to a penalty not exceeding five pounds.

(7) The Board shall cause a copy of any byelaws made under this section so long as they are in operation to be displayed in legible characters in some conspicuous place on or adjoining the controlled land.

(8) The powers conferred by this section shall be in addition to and not in derogation of any right power or authority exercisable by the Board as owners of the controlled land or otherwise.

(9) No erection or placing on the controlled land or any part or parts thereof of any of the things referred to in paragraph (e) of subsection (2) of this section in pursuance of any byelaw made under that paragraph shall be commenced or carried out without any permission that may be required under the Town and Country Planning Act 1947 having been first obtained.

(10) Nothing in this section shall be deemed to confer on the Board any right title or interest in or to any land for the time being forming part of the bed of the sea.

23.—(1) The Board from time to time may appoint employ Power to suspend and remove as they shall think fit a treasurer register appoint and additional register clerk harbour master and such superintendents remove officers. dock-masters collectors receivers and other officers and servants as they may from time to time find necessary (including where necessary the deputies and assistants of such officers) and may pay or allow to them respectively such salaries allowances recompense and superannuation during and after their respective periods of service or employment as the Board from time to time think reasonable and the Board may take from their collectors receivers and other officers such security for the due execution of the duties of their respective offices as the Board think fit.

(2) Any provision in the Dover Harbour Acts 1828 to 1949 or in any other enactment or in the charter of the Board with respect to the register of the Board shall extend and apply to the additional register and the execution by the additional register of any power vested in the register by any enactment document or instrument shall be a valid and effectual execution of such power.

24.—(1) The Board may grant such gratuities pensions or Power to make allowances or make such other payments as they may think fit to superannua- any employees of the Board or where in their opinion adequate tion and other provision is not otherwise made to the widow or family or any allowances. dependants of any such employee.

(2) The Board may enter into and carry into effect agreements with any insurance company or other association or company for securing to any such employees widow family or dependants as aforesaid such gratuities pensions allowances or payments as are by this section authorised to be granted or made and may for all or any of the purposes of this section apply the revenues of the Board.

25.—(1) In addition to the powers conferred on the Board Contributory by the last preceding section of this Act the Board may if they pensions think fit establish and maintain a fund to be called "the pensions fund." fund. " and pay out of the pensions fund gratuities of any sum or pensions or other allowances or benefits to any employees of the Board who may be contributors to the fund or to the widow family or dependants of such employees and the pensions fund shall be applicable only for the payment of such gratuities pensions allowances and benefits as aforesaid and for no other purpose whatsoever.

(2) The Board may also prepare put in force and from time to time modify alter or rescind a scheme prescribing the terms and conditions on which the employees of the Board or any classes of such employees may or shall become contributors to the pensions fund and the contributions to be made by such employees and the gratuities pensions allowances or benefits to which such contributors shall be entitled.

(3) The Board may apply the revenues of the Board for all or any of the purposes of this section including the purpose of maintaining the pensions fund at an adequate amount.

(4) No employee of the Board shall be required to become a contributor to any pensions fund established under this section until the fund has been registered under the Superannuation and other Trust Funds (Validation) Act 1927.

17 & 18 Geo. 5.
c. 41.

Application
of Local
Government
Act 1933 to
byelaws.
23 & 24 Geo. 5.
c. 51.

26.—(1) All byelaws made by the Board after the passing of this Act under any enactment shall be subject to the provisions contained in subsections (2) (3) (4) (5) (6) and (7) of section 250 and in sections 251 and 252 of the Local Government Act 1933 and all penalties imposed for the breach of any such byelaws shall be recoverable in manner provided by that Act for the recovery of penalties and those sections shall for the purposes of this section be construed as if the Board were a local authority within the meaning of those sections and the register of the Board were the clerk of the local authority.

(2) The confirming authority for the purposes of the said section 250 shall be the Minister.

Inquiries by
Minister.

27. The Minister may cause to be held such inquiries as he may consider necessary in regard to the exercise of any powers or duties conferred or imposed on him under this Act and subsections (2) to (5) of section 290 of the Local Government Act 1933 shall apply to such inquiries as if they were an inquiry held in pursuance of subsection (1) of that section and the Board were a local authority.

Recovery
of rates.

28. In addition to the remedy given by section 44 of the Harbours Clauses Act 1847 and whether the demand required by that section has been made or not the Board may recover any dues rates rents charges and taxes which by the Dover Harbour Acts 1828 to 1949 they are authorised to demand and take or any arrears of tolls rates dues and taxes payable to them under any enactment repealed by this Act as a debt in any court of competent jurisdiction.

Recovery of
penalties &c.

29.—(1) Save as otherwise expressly provided by any enactment from time to time relating to the Board all offences against any such enactment and all penalties and forfeitures imposed

or recoverable thereunder or under any byelaw made thereunder or by virtue thereof may be prosecuted and recovered in a summary manner.

(2) Any costs or expenses recoverable as aforesaid may be recovered summarily as civil debts where the amount recoverable does not exceed twenty pounds.

30. Where the payment of more than one sum by any person is due under the provisions of any enactment from time to time relating to the Board any summons or warrant issued for the purposes of any one or more of such enactments in respect of that person may contain in the body thereof or in a schedule thereto all the sums payable by him. Several sums in one summons.

31. This Act shall be deemed to be an enactment passed before and in force at the passing of the Town and Country Planning Act 1947 for the purposes of subsection (4) of section 13 and subsection (1) of section 118 of that Act. Saving for town and country planning.

32. Section 14 (Power to make contracts etc.) of the Dover Harbour Act 1928 shall be read and have effect as if instead of the words "compensation therefor" there were inserted in that section the words "commutation thereof". Amendment of section 14 of Dover Harbour Act 1928.

33.—(1) The enactments specified in Part I of the Sixth Repeal Schedule to this Act are hereby repealed.

(2) The enactments specified in Part II of the said schedule shall be repealed on and from the appointed day.

(3) Notwithstanding the repeal of any enactment—

(a) all agreements and working arrangements between the Board and the transport commission entered into under the powers of any enactment specified in the said schedule and subsisting at the date of the repeal of that enactment shall until the same are replaced by new agreements or working arrangements entered into under the powers of this or any other Act relating to Dover Harbour be as binding on the parties thereto and of as full force and effect in every respect as if this Act had not been passed ; and

(b) all byelaws regulations rules and orders made by the Board and enforceable by the Board at the passing of this Act shall so far as they are not inconsistent with the provisions of this Act and until repealed altered or superseded remain in force in like manner and to the same extent as if this Act had not been passed.

Crown
rights.

34. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Board to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Crown Lands or of the Minister respectively without the consent in writing of the Commissioners of Crown Lands or the Minister as the case may be on behalf of His Majesty first had and obtained for that purpose.

Costs of
Act.

35. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Board.

SCHEDULES

FIRST SCHEDULE

DUES ON VESSELS ENTERING USING OR LEAVING
THE HARBOUR

	Class of vessel	Per N.R.T.*
HARBOUR DUES		s. d.
1. On every vessel with cargo (other than coal coke or stone) or passengers		0 6
2. On every vessel with coal coke or stone		0 3
3. On every vessel in ballast to load coal coke or stone outwards		0 3
4. On every vessel in ballast to load outwards cargo other than coal coke or stone or to embark passengers ...		0 6
5. On every vessel entering in ballast and leaving in ballast ...		0 2
6. On every vessel exceeding 300 N.R.T. discharging or loading less than full cargo if the quantity of cargo discharged or loaded does not exceed one-third of the N.R.T.		0 3
7. On every vessel entering for bunkering purposes only ...		0 1
8. On every vessel entering in distress or for shelter stores for ship's use repairs orders or medical assistance without discharging or loading cargo or landing or embarking passengers		0 2
9. Vessels calling at Dover On every ocean vessel whether laden or in ballast entering for the purpose of embarking or disembarking passengers and their personal luggage or loading or discharging mails without occupying a quay berth or breaking bulk or loading cargo		0 3
10. On every tug entering with a tow or to leave with a tow Minimum charge to be 7s. 0d. including harbour light dues.		0 6
11. On every other tug Minimum charge to be 4s. 0d. including harbour light dues.		0 3
12. On every fishing vessel entering to land fish		0 2
13. On every coasting pleasure vessel operated for profit ...		0 2
14. On every pleasure yacht Minimum charge to be 1s. 0d. including harbour light dues.		0 1
15. On every vessel remaining in harbour for a longer period than one calendar month after date of entry for each week or part of a week Minimum charge to be 1s. 0d. per week or part of a week.		0 2
HARBOUR LIGHT DUES		
On every vessel entering or using the harbour		0 1
EXEMPTIONS		
Open boats Harbour dues and harbour light dues.		
Vessels in classes 13 and 15 Harbour light dues.		

* N.R.T. means net register tonnage.

1ST SCH.
—cont.

REGULATIONS AND CONDITIONS APPLICABLE TO HARBOUR DUES AND RENTS

1. All vessels remaining in the harbour for a longer period than one calendar month after date of entry will not be entitled to occupy quay berths and will be charged harbour rent on N.R.T. under class 15 during so long as they shall after the expiration of that period remain in the harbour without leaving the same in the bona fide prosecution of a voyage. Harbour rent shall not be chargeable so long as a vessel is occupying a slipway belonging to the Board.

2. For every vessel loading or discharging deck or double-bottom cargo cargo so carried shall be calculated in foot tons such measurement to be added to the N.R.T. for the purpose of charging harbour dues.

3. Vessels discharging one cargo and loading another shall be charged single harbour dues on whichever is the higher rate.

SECOND SCHEDULE

DOCK DUES AND RENTS

PAYABLE IN RESPECT OF EVERY VESSEL ENTERING OR LYING IN THE
GRANVILLE OR WELLINGTON DOCKS

Class of vessel	Per N.R.T.	
	s.	d.
1. On every vessel from any place in the United Kingdom Isle of Man Channel Islands or Eire	0	2
2. On every vessel from any other place	0	3
3. On every vessel from any place for the purpose of bunker- ing only	0	1
4. On every fishing vessel	0	1
5. On every pleasure yacht from any place whatsoever ...	0	2
Minimum charge to be 1s. 0d.		
6. On every vessel remaining in either dock for a longer period than one calendar month after date of entry For each week or part of a week thereafter	0	2
Minimum charge for pleasure yachts so remaining to be 2s. 0d. per week or part of a week.		

REGULATIONS AND CONDITIONS APPLICABLE TO DOCK DUES AND RENTS

1. All vessels remaining in the docks for a longer period than one calendar month after date of entry will not be entitled to occupy quay berths and will be charged dock rent on N.R.T. under class 6 during so long as they shall after the expiration of that period remain in the docks.

2. For every vessel loading or discharging deck or double-bottom cargo cargo so carried shall be calculated in foot tons such measurement to be added to the N.R.T. for the purpose of charging dock dues.

3. Payment of dock dues or dock rent in respect of any vessel shall not entitle such vessel to remain in the docks for a longer period than may be actually necessary for loading or discharging her cargo and shall not in any way affect the power of the harbour master if he

shall think fit to order such vessel to remove to any other part of the harbour whether or not the vessel shall at the time such order is given have completed the loading or discharge of cargo.

2ND SCH.
—cont.

4. The Board do not guarantee to keep vessels waterborne in consideration of the above dues but the harbour master will if possible give the person in charge of a vessel 24 hours' notice before emptying the dock in which the vessel is lying and the Board will not be answerable for any injury that may happen to any such vessel by reason of the dock being so emptied whether notice shall have been given to the person in charge thereof or not or from any other cause other than the wilful act or default of the Board or their officers.

5. Payment of dock dues or dock rent does not entitle a vessel to the use of a berth except when loading or discharging cargo.

6. Vessels in class 3 will be liable to full dock dues if they remain in either dock for a longer period than three working days.

THIRD SCHEDULE

WHARFAGE RATES ON GOODS

		s.	d.
Acetates not otherwise rated	per ton	2	0
Acids not otherwise rated	per ton	2	0
Aerated waters	per ton	2	0
Aeroplanes or seaplanes or parts	*(M) per ton	1	4
Agricultural or dairy implements machines or utensils	per ton	2	8
Alcohol	per ton	2	8
Ale beer or porter—			
In barrels	per ton	1	4
In bottles	per ton	2	0
Alkali not otherwise rated	per ton	0	9
Alum not otherwise rated	per ton	1	2
Alum cake	per ton	1	0
Alumina clay powdered	per ton	2	0
Alumina crude	per ton	1	2
Aluminium	per ton	2	0
Aluminium manufactures	per ton	2	8
Alunite	per ton	1	2
Ammonia	per ton	1	5
Aniline salts of or colour	per ton	2	0
Animals—			
Horses mules ponies asses bulls cows oxen or dogs	each	0	4
Calves	each	0	1
Sheep or pigs	per score	1	0
Lambs	per score	0	6
Animals not otherwise rated	each	0	6
Arms or ammunition	per ton	2	8
Arsenic	per ton	1	7

* The letter M denotes ton measurement.

3RD SCH.
—cont.

								s.	d.
Asbestos—									
Crude							per ton	1	4
Manufactured							per ton	2	0
Slates							per ton	1	2
Steam pipe covering							per ton	1	4
Ashes							per ton	0	3
Chemical							per ton	2	0
Asphalt							per ton	1	0
Compressed							per ton	1	4
Rock crude							per ton	0	6
Barium—									
Sulphate of							per ton	1	2
Rock crude							per ton	0	5
Bark							per ton	1	4
Barytes							per ton	1	2
Baskets or basket-making material							*(M) per ton	2	0
Bathbricks							per ton	1	0
Baths earthenware or fireclay							*(M) per ton	1	0
Bauxite							per ton	0	6
Beans oil castor etc.							per ton	1	2
Beet pulp							per ton	1	2
Belting							per ton	2	0
Benzine benzol or benzoline							per ton	2	0
Bicycles							... each	0	6
Bicycle parts							per ton	2	8
Biscuits							per ton	2	0
Bismuth							per ton	2	0
Binder twine							per ton	2	0
Bitumen liquid or road oil							per ton	1	0
Bleaching powder							per ton	1	2
Blood dry							per ton	0	6
Boats							per ton	2	8
Bog ore							per ton	0	6
Boiler composition							per ton	1	4
Bones bone dust or bone meal							per ton	0	6
Books							per ton	2	0
Boots or shoes all kinds							per ton	2	0
Borate of lime							per ton	1	2
Borax							per ton	2	0
Bottles or jars glass or stoneware							per ton	1	4
Brass or brass manufactures							per ton	2	8
Brass ashes or dross							per ton	1	2
Breeze blocks							per ton	0	6
Bricks all kinds							per ton	0	5
Bristles							per ton	1	4
Bronze							per ton	2	0
Brooms or brushes							per ton	2	0
Bullion or specie							per package	2	0
Bulbs (flower)							per ton	2	0
Cables or cordage							per ton	2	0
Cables electric telegraph or telephone							per ton	2	0
Cake for cattle feeding not otherwise rated							per ton	1	1

* The letter M denotes ton measurement.

						s.	d.	3RD SCH. —cont.
Calcium carbide of	...	...	...	...	per ton	1	9	
Calcium cyanimide (manure)	...	...	...	...	per ton	0	6	
Candles	...	...	...	...	per ton	2	0	
Canes manila or rattan	...	...	...	...	per ton	2	0	
Canvas	...	...	...	...	per ton	2	0	
Carbon black	...	...	...	...	per ton	2	0	
Carpets	...	...	...	...	per ton	2	8	
Castor seed	...	...	...	...	per ton	1	2	
Celluloid	...	...	...	...	per ton	2	0	
Cement shell or clinker	...	...	...	...	per ton	0	6	
Not otherwise rated	...	...	...	...	per ton	0	9	
Chalk—								
Crude	...	...	...	...	per ton	0	3	
French Italian or ground	...	...	...	...	per ton	1	0	
Chemicals not otherwise rated	...	...	...	...	per ton	2	0	
China or chinaware	...	...	...	...	per ton	1	0	
Chop hay or straw admixed with grain	...	...	...	...	per ton	1	1	
Chrome ore	...	...	...	...	per ton	0	6	
Cider—								
In bottles	...	...	...	...	per ton	2	0	
In casks	...	...	...	...	per ton	1	4	
Cigars or cigarettes	...	...	...	...	per ton	5	0	
Cinnamon	...	...	...	...	per ton	2	0	
Clay (fire or china)—								
Ground stones	...	...	...	...	per ton	0	6	
Common or ball	...	...	...	...	per ton	0	4	
Drain pipes tiles paving plain roofing and chimney pots	...	...	...	...	per ton	0	9	
Enamelled goods	...	...	...	...	per ton	1	4	
Goods not otherwise rated	...	...	...	...	per ton	1	0	
Vent linings and pipes	...	...	...	...	per ton	0	6	
Clocks or clockwork material	...	...	...	...	per ton	2	8	
Coal coke culm and charcoal	...	...	...	...	per ton	0	6	
Cobalt	...	...	...	...	per ton	2	0	
Cobalt ore	...	...	...	...	per ton	0	6	
Coir fabric fibre matting rope or yarn	...	...	...	...	per ton	2	0	
Concrete—								
Blocks or slabs	...	...	...	...	per ton	0	6	
Reinforced piles poles blocks and sewage tubes	...	...	...	...	per ton	0	9	
Confectionery	...	...	...	...	per ton	2	0	
Copper	...	...	...	...	per ton	2	0	
Cinders dross or slag	...	...	...	...	per ton	1	2	
Manufactures	...	...	...	...	per ton	2	8	
Matte or regulus and ore	...	...	...	...	per ton	1	0	
Sulphate of	...	...	...	...	per ton	1	9	
Copperas or sulphate of iron	...	...	...	...	per ton	1	0	
Copra	...	...	...	...	per ton	1	4	
Cork or corks	...	...	...	...	per ton	2	8	
Corkwood	...	...	...	...	per ton	2	0	
Compressed granulated for insulation	...	...	...	...	per ton	2	0	
Granulated shavings waste or refuse	...	...	...	...	per ton	1	4	

* The letter M denotes ton measurement.

3RD SCH.
—cont.

			s.	d.
Corn	per ton	0	8	
Oatmeal or flour pease meal rye and wheat flours	per ton	1	2	
Flourine	per ton	1	4	
Malt meal	per ton	1	9	
Lentils peas (split) malt	per ton	0	10	
All other kinds	per ton	2	0	
Corn etc. horse or cattle food—				
Bran	per ton	0	10	
Draff wet	per ton	0	5	
Gluten and soya meal	per ton	0	11	
Shudes or shellings	per ton	1	0	
All other kinds	per ton	1	1	
Corundum	per ton	2	0	
Ore	per ton	1	2	
Cotton—				
Manufactures and raw	per ton	2	0	
Rags	per ton	1	2	
Cotton seed fluff	per ton	1	2	
Hull waste	per ton	1	2	
Oil refuse residuum waste or wool	per ton	2	0	
Cotton cake	per ton	1	1	
Creosote	per ton	1	1	
Crucibles	per ton	1	4	
Plumbago old broken up	per ton	0	6	
Cutch	per ton	2	0	
Cutlery	per ton	2	8	
Cyanides	per ton	2	0	
Dextrine	per ton	2	0	
Disinfectants not otherwise rated	per ton	2	0	
Dividivi	per ton	2	0	
Dolomite	per ton	0	6	
Drapery goods	per ton	2	0	
Drugs not otherwise rated	per ton	2	0	
Dunnage—				
Wood	per ton (50 cu. ft.)	0	3	
Mats	per ton	1	0	
Dust or blacking founders'	per ton	1	0	
Dyestuff not otherwise rated	per ton	2	0	
Dyewood	per ton	1	4	
Ground or in chips	per ton	2	0	
Extracts not otherwise rated	per ton	2	0	
Dynamite	per ton	2	8	
Earth fullers paint or infusorial	per ton	1	0	
Earthenware	per ton	1	0	
Sanitary enamelled	per ton	1	0	
Eggs in cases	per ton	2	0	
Electrical appliances or parts	per ton	2	8	
Emery	per ton	2	0	
Stone	per ton	1	9	
Empties casks cases etc. not being returned	per ton	1	4	
Envelopes straw for bottles	per ton	2	0	

* The letter M denotes ton measurement.

						s.	d.	3RD SCH. —cont.
Epsom salts	...	...	...	...	...	per ton	0 9	
Farina	...	...	...	...	...	per ton	1 2	
Feathers (compressed)	...	...	...	...	...	per ton	2 8	
Felspar—								
Crude	...	...	...	...	...	per ton	0 6	
Ground	...	...	...	...	...	per ton	0 9	
Felt of all kinds	...	...	...	...	...	per ton	2 0	
Fire lighters patent	...	...	...	...	...	per ton	0 9	
Fish—								
Fresh	...	...	...	...	...	per ton	1 0	
Cured or salted	...	...	...	...	...	per ton	1 9	
Offal	...	...	...	...	...	per ton	0 4	
Meal	...	...	...	...	...	per ton	1 1	
Flax	...	...	...	...	...	per ton	2 0	
Dust or shews	...	...	...	...	...	per ton	0 9	
Seed	...	...	...	...	...	per ton	1 0	
Flint ground or flintstones	...	...	...	...	...	per ton	0 6	
Floor cloth oilcloth or linoleum	...	...	...	...	...	per ton	2 8	
Flowers fresh	...	...	...	...	...	per package	0 0½	
Fluorspar—								
Crude	...	...	...	...	...	per ton	0 6	
Ground	...	...	...	...	...	per ton	0 9	
Fluxphalte	...	...	...	...	...	per ton	1 0	
Flux skimmings	...	...	...	...	...	per ton	0 6	
Formaldehyde	...	...	...	...	...	per ton	2 0	
Fowls in crates	...	...	...	...	*(M)	per ton	2 0	
Food for cattle	...	...	...	...	...	per ton	1 1	
Fruit—								
Crystallized preserved or dried	...	...	...	...	...	per ton	2 0	
Fresh	...	...	...	...	...	per ton	1 4	
Pulp	...	...	...	...	...	per ton	1 9	
Furniture	...	...	...	...	*(M)	per ton	1 4	
Gambier	...	...	...	...	...	per ton	2 0	
Game	...	...	...	...	...	per ton	2 0	
Ganister	...	...	...	...	...	per ton	0 5	
Gas coal cinders	...	...	...	...	...	per ton	0 4	
Gas coal cinders ground	...	...	...	...	...	per ton	0 6	
Gases in cylinders	...	...	...	...	...	per ton	2 0	
Glass or glassware	...	...	...	...	*(M)	per ton	2 0	
Glass—								
Broken	...	...	...	...	...	per ton	0 4	
Ground	...	...	...	...	...	per ton	1 0	
Glauber salts	...	...	...	...	...	per ton	0 9	
Glucose or corn syrup	...	...	...	...	...	per ton	2 0	
Glue	...	...	...	...	...	per ton	2 0	
Glycerine	...	...	...	...	...	per ton	2 0	
Grape waste for cattle feeding	...	...	...	...	...	per ton	1 1	
Graphite	...	...	...	...	...	per ton	2 0	
Gravel all kinds	...	...	...	...	...	per ton	0 4	
Grease	...	...	...	...	...	per ton	2 0	
Grindstones	...	...	...	...	...	per ton	2 0	

* The letter M denotes ton measurement.

3RD SCH.
—cont.

							s. d.
Grit flint for poultry	...	...	...	...	per ton	0	6
Groceries	...	...	...	...	per ton	2	0
Guano or phospho-guano	...	...	...	...	per ton	0	6
Gum	...	...	...	...	per ton	2	0
Gunmetal	...	...	...	...	per ton	2	0
Gunpowder	...	...	...	...	per ton	2	8
Guts intestinal skin or sausage casings	...	...	...	...	per ton	2	0
Gutta percha or gutta percha goods	...	...	...	...	per ton	2	8
Gypsum—							
Crude	...	...	...	...	per ton	0	6
Manufactured not otherwise rated	...	...	...	...	per ton	2	0
Haberdashery	...	...	...	...	*(M) per ton	2	0
Hair	...	...	...	...	per ton	2	0
Hair refuse for manure	...	...	...	...	per ton	0	6
Hardware	...	...	...	...	*(M) per ton	2	0
Harness	...	...	...	...	per ton	2	0
Hay (machine pressed)	...	...	...	...	per ton	1	0
Hearthstones	...	...	...	...	per ton	1	0
Hemlock wood extract—							
Liquid	...	...	...	...	per ton	1	4
Solid	...	...	...	...	per ton	2	0
Hemp and hemp waste	...	...	...	...	per ton	2	0
Hemp seed	...	...	...	...	per ton	1	4
Hides	...	...	...	...	per ton	2	0
Hollow-ware	...	...	...	...	per ton	2	0
Hones or honestones	...	...	...	...	per ton	2	0
Hoofs	...	...	...	...	per ton	1	2
Hops	...	...	...	...	per ton	2	0
Horns	...	...	...	...	per ton	2	0
Horn waste piths shavings or slugs	...	...	...	...	per ton	1	0
Hosiery—							
Silk and nylons	...	...	...	...	per ton	2	8
Other kinds	...	...	...	...	per ton	2	0
Ice	...	...	...	...	per ton	0	6
Indiarubber and manufactures	...	...	...	...	per ton	2	8
Scrap	...	...	...	...	per ton	0	9
Ink	...	...	...	...	per ton	2	0
Iodine	...	...	...	...	per ton	2	0
Iron and steel—							
Anchors and chains	...	...	...	...	per ton	2	0
Angles bar bolt nut rod sheet plate channel and hoop	...	...	...	...	per ton	1	4
Billets blooms and slabs	...	...	...	...	per ton	0	9
Casting	...	...	...	...	per ton	1	0
Fencing and other wire including expanded metal	...	...	...	...	per ton	1	7
Girders joists and piling	...	...	...	...	per ton	1	6
Ingots	...	...	...	...	per ton	1	0
Iron galvanised	...	...	...	...	per ton	1	4
Ore	...	...	...	...	per ton	0	6
Oxide	...	...	...	...	per ton	0	6

* The letter M denotes ton measurement.

Iron and Steel—*continued*

s. d.

3RD SCH.
—*cont.*

Pipes—									
Underground	...	...	...	...	per ton	1	7		
Others	...	...	...	...	per ton	1	4		
Pig	...	...	...	...	per ton	0	9		
Rails sleepers chairs and railway permanent way material	...	...	...	...	per ton	1	0		
Scrap	...	...	...	...	per ton	0	8		
Tunnel casings and mining material	...	...	...	...	per ton	1	0		
Manufactured goods not otherwise rated	...	...	...	...	per ton	2	8		
Ivory	...	...	...	...	per ton	2	8		
Jewellery and precious stones	...	...	...	...	per package	2	0		
Jute—									
Raw	...	...	...	...	per ton	1	9		
Manufactured	...	...	...	...	per ton	2	0		
Waste for papermaking	...	...	...	...	per ton	1	2		
Kapoc	...	...	...	...	per ton	1	9		
Lamps or lamp parts	...	...	...	...	per ton	2	0		
Lamp black	...	...	...	...	per ton	1	9		
Laths and lathwood	...	...	...	...	per ton (50 cu. ft.)	0	6		
Launches or launch material	...	...	...	...	per ton	2	8		
Lead—									
Ore	...	...	...	...	per ton	0	6		
Pig or scrap	...	...	...	...	per ton	1	7		
All other kinds	...	...	...	...	per ton	2	0		
Leather—									
Goods	...	...	...	...	per ton	2	0		
Rough tanned not prepared	...	...	...	...	per ton	1	6		
Lime—									
Burnt or limeshell	...	...	...	...	per ton	0	4		
Carbonate of	...	...	...	...	per ton	1	0		
All other kinds	...	...	...	...	per ton	1	2		
Limestone	...	...	...	...	per ton	0	4		
Magnesium	...	...	...	...	per ton	0	6		
Linen manufactures	...	...	...	...	per ton	2	0		
Linseed	...	...	...	...	per ton	1	2		
Liquorice	...	...	...	...	per ton	2	0		
Raw	...	...	...	...	per ton	1	0		
Loam	...	...	...	...	per ton	0	6		
Locust beans	...	...	...	...	per ton	0	10		
Logwood extract	...	...	...	...	per ton	2	0		
Locomotives engines or tenders complete or in parts	...	...	...	...	per ton	2	8		
Machinery or machines not otherwise rated	...	...	...	...	per ton	2	8		
Magnesium chloride	...	...	...	...	per ton	1	2		
Magnesite	...	...	...	...	per ton	1	2		
Malt extract	...	...	...	...	per ton	2	0		
Manganese	...	...	...	...	per ton	2	0		
Ore	...	...	...	...	per ton	0	6		
Manure not otherwise rated	...	...	...	...	per ton	0	4		
Marble	...	...	...	...	per ton	1	4		
Chips or dust	...	...	...	...	per ton	0	8		
Matchwood manufactured or blocks	...	...	...	...	per ton	2	0		
Matches	...	...	...	...	per ton	2	0		

3RD SCH.
—cont.

							s.	d.
Mats or matting	...	...	...	...	...	per ton	1	9
Meal all kinds not otherwise rated	...	...	...	...	...	per ton	1	1
Meat meal or refuse	...	...	...	...	...	per ton	1	1
Metals not otherwise rated	...	...	...	...	...	per ton	2	0
Mica	...	...	...	...	...	per ton	2	0
Milk	...	...	...	...	...	per ton	1	0
Concentrated condensed preserved or powder	...	...	...	...	...	per ton	2	0
Millet seed	...	...	...	...	...	per ton	1	4
Mineral waters	...	...	...	...	...	per ton	2	0
Molasses for cattle feeding	...	...	...	...	...	per ton	1	1
Moss	...	...	...	...	...	per ton	1	0
Moss or peat litter	...	...	...	...	...	per ton	0	4
Motor-cars motor-cycles trailers and sidecars parts of or accessories	...	...	...	...	...	per ton	2	8
Motor-coaches	...	...	...	...	...	each	40	0
Motor-cars—								
Exceeding 8 ft. 6 in. wheelbase	...	...	...	...	...	each	8	0
Not exceeding 8 ft. 6 in. wheelbase	...	...	...	...	...	each	5	0
Motor-trailers and caravans	...	...	...	...	...	each	5	0
Motor-cycles and sidecars	...	...	...	...	...	each	4	0
Motor-cycles	...	...	...	...	...	each	2	0
Musical instruments	...	...	...	...	...	*(M) per ton	2	8
Myrobolams	...	...	...	...	...	per ton	1	4
Myrobolam extract—								
Liquid	...	...	...	...	...	per ton	1	4
Solid	...	...	...	...	...	per ton	2	0
Naphtha	...	...	...	...	...	per ton	1	4
Naphthaline crude (creosote salts)	...	...	...	...	...	per ton	1	4
Nets	...	...	...	...	...	per ton	2	0
Newspapers	...	...	...	...	...	per ton	1	4
Old	...	...	...	...	...	per ton	1	0
Nickel—								
Manufactures	...	...	...	...	...	per ton	2	8
Ore	...	...	...	...	...	per ton	0	6
Pig	...	...	...	...	...	per ton	1	7
Nitrate of soda	...	...	...	...	...	per ton	0	6
Nuts earth or ground for crushing for oil	...	...	...	...	...	per ton	1	2
Nuts not otherwise rated	...	...	...	...	...	per ton	2	0
Nut kernels	...	...	...	...	...	per ton	1	2
Oak extract—								
Liquid	...	...	...	...	...	per ton	1	4
Solid	...	...	...	...	...	per ton	2	0
Oakum	...	...	...	...	...	per ton	2	0
Ochre	...	...	...	...	...	per ton	1	4
Oils—								
Fuel gas or diesel in bulk	...	...	...	...	...	per 250 gallons	1	0
Petrol	...	...	...	...	...	per 250 gallons	2	0
Not otherwise rated	...	...	...	...	...	per 250 gallons	1	1
Oil cake	...	...	...	...	...	per ton	1	1
Ores not otherwise rated	...	...	...	...	...	per ton	0	6

* The letter M denotes ton measurement.

						s.	d.	3RD SCH. —cont.
Osiers twigs or willows	...	...	...	...	per ton	2	0	
Oxide spent for manure	...	...	...	...	per ton	0	6	
Oxides not otherwise rated	...	...	...	...	per ton	2	0	
Oyster shells crushed	...	...	...	...	per ton	0	6	
Paints including white and red lead	...	...	...	...	per ton	2	0	
Paper	...	...	...	...	per ton	2	0	
Waste for papermaking	...	...	...	...	per ton	1	0	
Paperstock not otherwise rated	...	...	...	...	per ton	1	2	
Paper emery glass or sand	...	...	...	...	per ton	2	0	
Paraffin scale or wax	...	...	...	...	per ton	2	0	
Patent fuel	...	...	...	...	per ton	0	6	
Paving stones	...	...	...	...	per ton	0	6	
Paving blocks—								
Composition	...	...	...	...	per ton	2	0	
Jarrah wood	...	...	...	...	per ton	1	2	
Peats or turf	...	...	...	...	per ton	0	6	
Perambulators	...	...	...	...	*(M) per ton	2	8	
Perry	...	...	...	...	per ton	2	8	
Phosphates not otherwise rated	...	...	...	...	per ton	0	6	
Pianos	...	...	...	...	*(M) per ton	3	0	
Pitch—								
Coal tar blast furnace or natural	...	...	...	...	per ton	0	6	
Not otherwise rated	...	...	...	...	per ton	1	0	
Plants	...	...	...	...	per ton	2	0	
Plaster of Paris	...	...	...	...	per ton	1	2	
Plaster stone	...	...	...	...	per ton	1	2	
Plastics and manufactures	...	...	...	...	per ton	2	0	
Plumbago	...	...	...	...	per ton	1	7	
Plywood or box shooks	...	...	...	...	per ton	2	0	
Potash	...	...	...	...	per ton	0	6	
Potato flour	...	...	...	...	per ton	1	2	
Powder disinfectant	...	...	...	...	per ton	1	0	
Prefabricated buildings	...	...	...	...	*(M) per ton	2	8	
Provisions and groceries of all kinds	...	...	...	...	per ton	2	0	
Pumice stone	...	...	...	...	per ton	1	7	
Powder and sand	...	...	...	...	per ton	1	0	
Putty	...	...	...	...	per ton	1	9	
Pyrites	...	...	...	...	per ton	0	6	
Quartz all kinds	...	...	...	...	per ton	2	0	
Rabbits dead	...	...	...	...	per ton	2	0	
Rabbit fur	...	...	...	...	per ton	2	0	
Rags not otherwise rated—								
Linen	...	...	...	...	per ton	1	2	
Others	...	...	...	...	per ton	1	0	
Railway plant wagons carriages etc. complete or in parts								
					per ton	2	8	
Rapeseed	...	...	...	...	per ton	1	2	
Rape cake	...	...	...	...	per ton	1	1	

* The letter M denotes ton measurement.

3RD SCH.
—cont.

								s.	d.
Rice	...	...	...	...	...	...	per ton	1	0
Flour or ground	...	...	...	...	...	...	per ton	1	2
Meal	...	...	...	...	...	...	per ton	1	1
Prepared food	...	...	...	...	...	...	per ton	2	0
All other kinds	...	...	...	...	...	...	per ton	1	0
Rock salt	...	...	...	...	...	...	per ton	0	6
Ropes	...	...	...	...	...	...	per ton	2	0
Old	...	...	...	...	...	...	per ton	0	7
Rosin	...	...	...	...	...	...	per ton	1	7
Size	...	...	...	...	...	...	per ton	2	0
Roots edible not otherwise rated	...	...	...	...	...	...	per ton	1	0
Salammoniac	...	...	...	...	...	...	per ton	2	0
Salt	...	...	...	...	...	...	per ton	0	6
Table or compressed	...	...	...	...	...	...	per ton	1	0
Salts waste	...	...	...	...	...	...	per ton	1	4
Saltpetre	...	...	...	...	...	...	per ton	1	4
Sand	...	...	...	...	...	...	per ton	0	6
Sanitary apparatus or fittings not otherwise rated	...	...	...	...	...	...	per ton	1	6
Satinite	...	...	...	...	...	...	per ton	1	2
Seeds not otherwise rated	...	...	...	...	...	...	per ton	1	4
Shale	...	...	...	...	...	...	per ton	0	6
Ground oil still refuse	...	...	...	...	...	...	per ton	1	0
Shellac	...	...	...	...	...	...	per ton	2	0
Shellfish not otherwise rated	...	...	...	...	...	...	per ton	1	2
Ship's fenders	...	...	...	...	...	...	per ton	2	0
Shells not otherwise rated	...	...	...	...	...	...	per ton	2	0
Silica stone or sand ground	...	...	...	...	...	...	per ton	0	6
Silk	...	...	...	...	...	...	per ton	2	8
Artificial	...	...	...	...	...	...	per ton	2	0
Skins not otherwise rated	...	...	...	...	...	...	per ton	2	0
Slag—									
Ground or manure	...	...	...	...	...	...	per ton	0	6
Wool	...	...	...	...	...	...	per ton	1	0
Slates—									
Common roofing	...	...	...	...	...	...	per ton	0	9
Writing	...	...	...	...	...	...	per ton	2	0
Slate—									
Flour or dust	...	...	...	...	...	...	per ton	2	0
Slabs	...	...	...	...	...	...	per ton	0	8
Snuff	...	...	...	...	...	...	per ton	3	0
Soap—									
Hard soft or powder	...	...	...	...	...	...	per ton	1	2
Perfumed	...	...	...	...	...	...	per ton	2	0
Soapstone or talc	...	...	...	...	...	...	per ton	1	2
Soda—									
Acetate phosphate caustic (solid)	...	...	...	...	...	...	per ton	1	2
Nitrate of	...	...	...	...	...	...	per ton	1	4
Ash bicarbonate caustic (liquid) crystals (carbonate)	...	...	...	...	...	...	per ton	1	0
silicate sulphate sulphite	...	...	...	...	...	...	per ton	1	9
Not otherwise rated	...	...	...	...	...	...	per ton	2	0
Sodium	...	...	...	...	...	...	per ton	1	2
Sulphide	...	...	...	...	...	...	per ton	1	0
Soot	...	...	...	...	...	...	per ton	1	0

							<i>s. d.</i>	3RD SCH. —cont.
Spar—								
Crude	...	...	...	...	...	per ton	0 6	
Ground	...	...	...	...	...	per ton	0 9	
Spelter	...	...	...	...	...	per ton	2 0	
Ashes	...	...	...	...	...	per ton	1 2	
Spent oxide	...	...	...	...	...	per ton	0 6	
Spirits brandy gin rum or whisky bottled in cases or casks						per ton	2 8	
Spirits not otherwise rated	...	...	...	...	...	per ton	2 8	
Starch corn flour pearl or powdered	...	...	...	...	...	per ton	1 4	
Not otherwise rated	...	...	...	...	...	per ton	2 0	
Stationery	...	...	...	...	...	per ton	2 0	
Stavewood rough	...	...	...	...	...	per ton	0 8	
Staves dressed	...	...	...	...	...	per ton	1 4	
Stearine	...	...	...	...	...	per ton	2 0	
Stone—								
Road metal chips or crushed	...	...	...	...	...	per ton	0 6	
Road metal chips or crushed (tarred)	...	...	...	...	...	per ton	0 6	
Granite broken chippings or dust stones (causeway)						per ton	0 6	
Kerb	...	...	...	...	...	per ton	0 9	
Clinker	...	...	...	...	...	per ton	0 4	
Dressed	...	...	...	...	...	per ton	0 9	
Freestone or whin rough	...	...	...	...	...	per ton	0 6	
Granite rough	...	...	...	...	...	per ton	0 9	
Monumental or polished	...	...	...	...	...	per ton	1 4	
Stoneware	...	...	...	...	...	per ton	1 4	
Straw	...	...	...	...	...	per ton	1 0	
Strawboards	...	...	...	...	...	per ton	2 0	
Stucco	...	...	...	...	...	per ton	1 2	
Cast or figures	...	...	...	...	...	per ton	2 0	
Sugar	...	...	...	...	...	per ton	1 7	
Sulphate of alumina	...	...	...	...	...	per ton	1 0	
Sulphur—								
Crude	...	...	...	...	...	per ton	1 0	
Manufactured	...	...	...	...	...	per ton	1 4	
Syrup—								
Fruit	...	...	...	...	...	per ton	2 0	
Other kinds not otherwise rated	...	...	...	...	...	per ton	1 4	
Talc	...	...	...	...	...	per ton	1 2	
Tallow	...	...	...	...	...	per ton	2 0	
Tanning extract—								
Liquid not otherwise rated	...	...	...	...	...	per ton	1 4	
Solid not otherwise rated	...	...	...	...	...	per ton	2 0	
Tapioca	...	...	...	...	...	per ton	2 0	
Flour	...	...	...	...	...	per ton	1 2	
Roots ground for cattle feeding	...	...	...	...	...	per ton	1 1	
Tar coal gas or wood	...	...	...	...	...	per ton	1 0	
Tarpaulins	...	...	...	...	...	per ton	2 0	
Tartaric acid	...	...	...	...	...	per ton	2 0	
Tea	...	...	...	...	...	per ton	2 8	
Telegraph or telephone apparatus	...	...	...	...	...	per ton	2 8	

3RD SCH.
—cont.

							s.	d.
Theatrical scenery	...	...	...	...	*(M)	per ton	2	8
Thread	...	...	...	...		per ton	2	0
Tiles not otherwise rated	...	...	...	...		per ton	0	9
Tin	...	...	...	...		per ton	2	0
Ashes	...	...	...	...		per ton	1	2
Manufactures	...	...	...	...		per ton	2	8
Ore	...	...	...	...		per ton	1	2
Scrap	...	...	...	...		per ton	2	0
Tinplates or canada plates in boxes	...	...	...	...		per ton	2	0
Tobacco	...	...	...	...		per ton	5	0
Tools not otherwise rated	...	...	...	...		per ton	2	0
Tow or tow waste	...	...	...	...		per ton	1	7
Toys	...	...	...	...		per ton	2	0
Treacle	...	...	...	...		per ton	2	0
For cattle feeding	...	...	...	...		per ton	1	1
Tree plants	...	...	...	...		per ton	2	0
Turmeric (dye)	...	...	...	...		per ton	2	0
Turpentine	...	...	...	...		per ton	2	0
Twine	...	...	...	...		per ton	2	0
Tyres or tubes rubber motor or cycle	...	...	...	...		per ton	2	8
Umber	...	...	...	...		per ton	1	4
Valonia	...	...	...	...		per ton	1	7
Extract liquid	...	...	...	...		per ton	1	4
Extract solid	...	...	...	...		per ton	2	0
Valves not otherwise rated	...	...	...	...	*(M)	per ton	2	0
Varnish	...	...	...	...		per ton	2	0
Vaseline	...	...	...	...		per ton	2	0
Vegetables—								
Green or fresh	...	...	...	...		per ton	1	0
In tins	...	...	...	...		per ton	2	0
Vessels motor sailing or steam or parts thereof	...	...	...	...		per ton	2	8
Vinegar	...	...	...	...		per ton	2	0
Wagons complete or in parts	...	...	...	...		per ton	2	8
Wallboards—								
Plaster	...	...	...	...		per ton	1	4
Not otherwise rated	...	...	...	...		per ton	2	0
Washing boards	...	...	...	...		per ton	2	0
Wax not otherwise rated	...	...	...	...		per ton	2	0
Wearing apparel	...	...	...	...		per ton	2	0
Whale meat meal	...	...	...	...		per ton	1	1
Wheelbarrows complete or in parts	...	...	...	...	*(M)	per ton	2	0
Wheels not otherwise rated	...	...	...	...		per ton	2	0
Whiting	...	...	...	...		per ton	0	6
Willows	...	...	...	...		per ton	2	0
Wines of all kinds	...	...	...	...		per ton	2	8
Wire or wirework not otherwise rated	...	...	...	...		per ton	2	0
Wood—								
Soft woods—								
Hewn or round	...	...	...	...	*(M)	per ton	1	2
Sawn	...	...	...	...	*(M)	per ton	1	4
Planed tongued or grooved	...	...	...	...	*(M)	per ton	1	6

* The letter M denotes t on measurement.

Wood— <i>continued</i>						s. d.	3RD SCH. —cont.
Hard woods—							
Hewn or round—	...	...	...	*(M)	per ton	1 6	
Sawn	...	...	...	*(M)	per ton	1 8	
Planed tongued or grooved	...	...	...	*(M)	per ton	1 10	
Furniture fancy or turnery woods—							
Hewn or round	...	...	...	*(M)	per ton	2 0	
Sawn	...	...	...	*(M)	per ton	2 2	
Planed tongued or grooved	...	...	...	*(M)	per ton	2 4	
Pit props	...	...	...	...	per ton	1 2	
Sleepers	...	...	...	*(M)	per ton	1 2	
Spars poles and rickers round or square not exceeding 4 ins. diameter and not exceeding 22 ft. long	...	...	...	Per 20 pieces		0 6	
Spars poles and rickers round or square not exceeding 4 ins. diameter and exceeding 22 ft. long	...	...	...	Per 20 pieces		1 0	
Spars poles and rickers round or square exceeding 4 ins. and not exceeding 6 ins. diameter	...	...	...	Per 20 pieces		2 0	
Firewood	...	...	...	Fathom of 216 cu. ft.		1 0	
Wood flour	...	...	...	per ton		0 9	
Wood pulp	...	...	...	per ton		1 2	
Woodware woodwork or joinery material	...	...	...	per ton		2 0	
Wool	...	...	...	per ton		1 4	
Woollen manufactures	...	...	...	per ton		2 0	
Woollen rags	...	...	...	per ton		1 6	
Woollen shoddy	...	...	...	per ton		2 0	
Yachts or parts thereof	...	...	...	per ton		2 8	
Yarn	...	...	...	per ton		1 4	
Yellow metal	...	...	...	per ton		2 0	
Zinc—							
Not otherwise rated	...	...	...	per ton		2 0	
Ashes	...	...	...	per ton		1 2	
Concentrates and ore	...	...	...	per ton		0 6	
Manufactured	...	...	...	per ton		2 0	
All other goods not particularly enumerated	...	...	...	per ton		2 0	

EXEMPTIONS

No wharfage rates shall be levied on—

- (a) Baggage being the bona fide personal baggage of a passenger and consisting only of a reasonable quantity of apparel and personal effects for the use of such passenger and not including furniture motor vehicles or merchandise.
- (b) Ship's fittings stores dunnage and stevedores gear required for the vessel's own use.

* The letter M denotes ton measurement.

3RD SCH.
—cont.

REGULATIONS AND CONDITIONS

REGULATIONS AND CONDITIONS AFFECTING GOODS PASSED OVER THE HARBOUR QUAYS OR JETTIES OR STORED IN THE HARBOUR WAREHOUSES OR DEPOSITED UPON THE QUAYS JETTIES OR IN THE YARDS OR ON THE HARBOUR PREMISES OF THE BOARD

1. The Board shall charge single wharfage rates only on all goods which are transhipped overside from one vessel to another (whether for purposes of export or import or to enable repairs to be effected to a damaged vessel) and this privilege shall cover landing on the quays for facilitating such transshipment provided such goods are re-shipped—

- (1) in the case of goods for import or export within seven days (excluding Sundays but including holidays) after having been so landed; or
- (2) in the case of goods landed from a damaged vessel within such reasonable time as in the opinion of the Board may be necessary for carrying out the repairs to such vessel:

Provided with reference to both (1) and (2) hereof that—

- (a) Such goods shall not between landing and re-shipment have been removed from the quays or other premises in which the Board permit such goods to be placed;
- (b) In order to entitle such goods to the privilege above mentioned evidence in such form as may be required by the Board of compliance with the conditions requisite to entitle them to such privilege shall be produced to the Board at the time of transshipment or re-shipment by the party claiming to benefit and after the expiry of the specified periods the full rates inward and outward on such goods shall be charged;
- (c) Quay rent under the Fourth Schedule to this Act shall be payable on such goods if not removed within twenty-four hours.

2. Wharfage rates are assessed per ton except where otherwise provided. The gross weight or measurement of all packages to be taken. Except where otherwise specified the term ton shall mean—

- (1) where charges are assessed by weight 20 cwts. or 1,000 kilos; and
- (2) where charges are assessed by measurement 40 cubic feet (50 cubic feet in the case of timber).

3. Fractions of an inch shall be reckoned as one inch and fractions of a pound as one pound.

4. For all goods not particularly specified in this schedule wharfage rates will be charged at the rate payable in respect of goods specified therein which are as nearly as may be of like nature and value thereto or alternatively at the discretion of the Board at the rate fixed for "All other goods not particularly enumerated".

5. A manifest of the contents and quantities of each vessel shall be delivered by the owner master or other duly authorised person to the office of the Board—

3RD SCH.
—cont.

(a) in the case of vessels loading before the departure of the vessel; and

(b) in the case of vessels discharging as soon as practicable after the arrival of the vessel.

6. Wharfage rates shall be payable on goods imported immediately after the goods are unshipped and before they are removed from the works or premises of the Board and on goods exported before they are shipped.

FOURTH SCHEDULE

QUAY AND SHED RENTS

PAYABLE IN RESPECT OF GOODS NOT REMOVED WITHIN
TWENTY-FOUR HOURS

For each successive period of 14 days after non-removal. Per ton per day or part of a day.

					s.	d.
First period		...	...	...	0	0½
Second period	...	...	...	...	0	1
Thereafter ...	...	...	...	...	0	2

But nevertheless any goods shall be removed within twenty-four hours after notice has been given to that effect by the Board or harbour master or other duly authorised officer to the owners or consignees thereof.

Failing the goods being so removed a rent of 3*d.* per ton per day or any part of a day shall be charged after the expiration of the period mentioned in the notice to remove and the Board or their officers shall be entitled to remove the goods and to detain them until payment is made of the expenses of and in connection with such removal and detention and of any rent or other sum due thereon and to sell the goods if such expenses and rent or other sum are not paid.

EXEMPTIONS AND REGULATIONS

So long as the harbour master is of the opinion that the reasonable use and enjoyment of any wharf berth quay pier shed or other work of the Board is not interfered with or business obstructed goods and other articles placed thereon or therein may remain free of rent for the following periods including the free period of twenty-four hours allowed by the foregoing Act:—

A. Imported goods

Goods placed in sheds ... 48 hours after final discharge of vessel.

Goods placed in the open ... 5 days after final discharge of vessel.

4TH SCH.
—cont.B. *Goods for export*

If placed by permission of the harbour master. 7 days after the date on which permission is given.

Where a vessel discharges her cargo at more than one berth the expression "final discharge of vessel" shall as regards each berth mean the date on which the discharge at that berth shall have been completed.

FIFTH SCHEDULE

CHARGES FOR USE OF SLIPWAYS

Description	Authorised charges	
	Hauling and launching	Daily rent
	£ s. d.	£ s. d.
For vessels not exceeding:—		
100 tons (gross)	4 0 0	1 0 0
125 tons do.	4 0 0	1 0 0
150 tons do.	4 10 0	1 10 0
175 tons do.	5 0 0	1 10 0
200 tons do.	6 0 0	1 10 0
250 tons do.	7 10 0	1 10 0
300 tons do.	9 0 0	1 10 0
350 tons do.	10 10 0	1 10 0
400 tons do.	12 0 0	1 10 0
500 tons do.	15 0 0	1 10 0
600 tons do.	18 0 0	1 10 0
700 tons do.	20 10 0	1 10 0
800 tons do.	23 10 0	1 10 0

REGULATIONS AND CONDITIONS

1. Every vessel to be charged on the gross register tonnage.
2. Daily rent shall not be payable in respect of the periods occupied in hauling up and launching.
3. A day shall be twenty-four consecutive hours reckoned from the time a vessel is hauled up on the slipway any part of a day to be counted and charged as a day.
4. No Sundays or holidays to be reckoned as chargeable days unless work is done on those days.
5. No vessel shall be permitted to use the slipway unless and until the master owner or agent of the vessel has entered into an agreement with the Board for the use of the slipway and the Board in any such agreement may specify such terms and conditions governing the use of the slipway as they may think fit.
6. The master owner and agent of a vessel using the slipway shall be liable to pay or forfeit such additional rates damages costs and penalties as are specified in the byelaws applicable thereto or in the agreement.

applicable to the use of the slipway by that vessel with reference to any contingency therein expressed or breach or non-observance of or non-compliance with anything thereby required and no vessel occupying the slipway shall be removed therefrom without the consent in writing of the harbour master or other duly authorised officer of the Board until all claims against such vessel in respect of or relating to such occupation are settled.

5TH SCH.
—cont.

SIXTH SCHEDULE

PART I

ENACTMENTS REPEALED ON THE PASSING OF THIS ACT

Dover Harbour Act 1828—

Sections 2 9 10 17 23 to 32 38 to 42 44 to 47 49 to 58 61 63 to 72 and 74.

Dover Harbour Act 1836—

The whole Act except section 8.

Dover Harbour Act 1848—

The whole Act.

Dover Harbour Act 1871—

Sections 9 and 22.

Dover Harbour Act 1891—

Sections 22 46 and 48.

Dover Harbour Act 1898—

Section 20 and section 25 from the words "Section 46 (Byelaws may be written or printed) of the Act of 1891" to the end of the section.

Dover Harbour Act 1901—

Section 50 from the words "Section 46 (Byelaws may be written or printed) of the Act of 1891" to the end of the section and sections 51 and 55.

Dover Harbour Act 1902—

Section 28 from the words "Section 46 (Byelaws may be written or printed) of the Act of 1891" to the end of the section and section 29.

Dover Harbour (Works &c.) Act 1906—

Section 42 from the words "Section 46 (Byelaws may be written or printed) of the Act of 1891" to the end of the section.

Dover Harbour Act 1913—

Sections 16 and 18.

Dover Harbour Act 1920—

Section 53 from the words "Section 46 (Byelaws may be written or printed) of the Act of 1891" to the end of the section and section 55.

Dover Harbour Act 1923—

Section 19.

Dover Harbour Act 1926—

Section 21.

6TH SCH.
—cont.

PART II

ENACTMENTS REPEALED ON THE APPOINTED DAY

- Dover Harbour Act 1871—
Sections 10 11 12 and 14 and the Second Schedule.
- Dover Harbour Act 1891—
Sections 43 45 and 55.
- Dover Harbour Act 1898—
Section 29.
- Dover Harbour Act 1901—
Sections 48 49 and 53.
- Dover Harbour Act 1902—
Sections 26 27 and 31.
- Dover Harbour (Works &c.) Act 1906—
Sections 40 41 and 46.
- Dover Harbour Act 1913—
Section 20.
- Dover Harbour Act 1919—
The whole Act.
- Dover Harbour Act 1920—
Subsection (2) of section 38 and section 52.
- Dover Harbour Act 1923—
Section 9 and the Second Schedule.
- Dover Harbour Act 1926—
Subsection (1) of section 23.

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